

At bar, the Petition was served by mail, with no returned acknowledgment of service, on: Tahoe Forest Hospital District; County of Nevada, Clerk of the Board of Supervisors; Tahoe Forest Hospital District, Director of Quality and Regulations. See 7/20/26 POS. There is no indication the Petition was served on the “clerk or secretary or board of the local public entity” in accordance with the requirements of Code of Civil Procedure section 1005. As such, the Court lacks jurisdiction to consider the petition.

8. CU0001544 Caitlin Peters vs. Cara Krpalek, et al.

Defendant Jiri Krpalek’s demurrer to the complaint is sustained without leave to amend as to the seventh cause of action and is sustained with leave to amend as to the first through sixth causes of action. Plaintiff is granted leave to amend within ten (10) days of notice of this Court’s order.

Untimely Opposition

Plaintiff filed an untimely opposition on September 16, 2026. There is no proof of service suggesting it was served on Defendant Jiri Krapalek. The Court, in the exercise of its discretion, declines to consider this untimely and seemingly unserved opposition. See, e.g., *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 (“A trial court has broad discretion under rule 3.1300(d) of the Rules of Court to refuse to consider papers served and filed beyond the [applicable] deadline without a prior court order finding good cause for late submission.”); *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 (“Pro. per. litigants are held to the same standards as attorneys.”).

Legal Standard on Demurrer

On demurrer, a court’s function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff’s claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-114.

“If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted.” *Milligan v. Golden Gate Bridge Highway & Transportation Dist.* (2004) 120 Cal.App.4th 1, 6.

Analysis

All Causes of Action

Defendant argues the complaint fails to specify what Defendant Krpalek allegedly did, when, or how it caused harm to Plaintiff. Defendant also argues the complaint includes conclusory statements but fails to provide any factual or evidentiary basis connecting him to any wrongful act. The Court agrees.

At bar, the Complaint alleges:

On or about May 31, 2024, Defendant unlawfully took possession of Plaintiff's Emotional Support Animal (ESA), a purebred Boston Terrier named Beau, knowing that Beau belonged to Plaintiff. Despite Plaintiff's extensive efforts to recover Beau, Defendant refused to return him, causing Plaintiff significant emotional distress and financial hardship. Defendant provided false information to law enforcement and animal control officials, obstructing the investigation and hindering the recovery of Beau.

Complaint, 2:7-11.

At bar, there is no distinction made in the Complaint between Defendants Jiri and Cara Krpalek. The Complaint fails to adequately identify which defendant performed the conduct alleged. As such, the demurrer is sustained as to all causes of action on this ground alone. There is a possibility that Plaintiff can remedy this defect.

First Cause of Action – Grand Theft

As to the first cause of action for grand theft pursuant to Penal Code section 487, the essential elements are “the taking of personal property [valued at more than \$950] from the owner ... into the possession of the [tortfeasor] without the consent of the owner or under a claim of right, [and] the asportation of the subject matter [with] the specific intent to deprive the owner of his property wholly and permanently.” *People v. Whitmer* (2014) 230 Cal.App.4th 906, 922; see CALCRIM 1800, 1801; see also *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1224 (“Civil actions lie in favor of crime victims. Violation of a criminal statute embodying a public policy is generally actionable even though no specific civil remedy is provided in the criminal statute. Any injured member of the public for whose benefit the statute is enacted may bring an action.”)(citations omitted).

At bar, the complaint alleges that Defendants took possession of the dog at issue and did not return the same. These allegations alone are insufficient. There is the possibility Plaintiff can rectify these defects; thus, the Court will allow an opportunity to amend this claim.

Second Cause of Action – Intentional Inflection of Emotional Distress

To state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by

the defendant's outrageous conduct. *Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160.

At bar, the complaint alleges the conduct described above “was outrageous, intentional, and done with reckless disregard for Plaintiff’s emotional well-being.” Complaint, 2:23-24. These allegations are insufficient. There is the possibility Plaintiff can rectify these defects; thus, the Court will allow an opportunity to amend this claim.

Third Cause of Action – Misrepresentation/Fraud

“ ‘One who fraudulently makes a misrepresentation of fact ... for the purpose of inducing another to act or to refrain from action in reliance upon it, is subject to liability to the other in deceit for pecuniary loss caused to him by his justifiable reliance upon the misrepresentation.’ ” *Lovejoy v. AT&T Corp.* (2001) 92 Cal.App.4th 85, 92-93. “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, *i.e.*, to induce reliance; (d) justifiable reliance; and (e) resulting damage.” *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638. “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. ... [¶] This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ ” *Id.* at 645 (original italics, citations and quotation marks omitted). In addition, “[e]very element of a fraud cause of action must be specifically pleaded. This pleading requirement of specificity applies not only to the alleged misrepresentation, but also to the elements of causation and damage.” *Moncada v. West Coast Quartz Corp.* (2013) 221 Cal. App. 4th 768, 776.

At bar, the complaint alleges “Defendant knowingly provided false information to ... officials to mislead the investigation.” 3:1-2. These allegations are insufficient. There is the possibility Plaintiff can rectify these defects; thus, the Court will allow an opportunity to amend this claim.

Fourth Cause of Action – Conversion

“Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240. “To prove a cause of action for conversion, the plaintiff must show the defendant acted intentionally to wrongfully dispose of the property of another.” *Duke v. Superior Court* (2017) 18 Cal.App.5th 490, 508. “The tort of conversion applies to personal property, not real property.” *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1295.

At bar, the complaint alleges “Defendant wrongfully exercised control over Plaintiff’s property, depriving Plaintiff of the use and enjoyment of Beau.” Complaint, 3:7-8. These allegations are insufficient. There is the possibility Plaintiff can rectify these defects; thus, the Court will allow an opportunity to amend this claim.

Fifth Cause of Action – Obstruction of Justice

As to the fifth cause of action for obstruction of justice, Plaintiff offers no authority under the common law or under statutory law to support her theory for obstruction of justice. She solely alleges that that “Defendant made false statements to law enforcement regarding Beau’s whereabouts, obstructing the investigation and delaying the recovery of Plaintiff’s ESA.” As noted previously, sometimes “[c]ivil actions lie in favor of crime victims” and an “injured member of the public for whose benefit the statute is enacted may bring an action.” *Angie M.*, 37 Cal.App.4th at 1224. It is not clear, however, based on the facts and theories alleged, that this is a situation where a civil action lies. The demurrer is sustained. It is not wholly clear Plaintiff can rectify this defect. Given the liberality associated with amendments, the Court will permit the same.

Sixth Cause of Action – Trespass to Chattels

Trespass to chattel, although seldom employed as a tort theory in California. . . , lies where an intentional interference with the possession of personal property has proximately caused injury. Prosser notes trespass to chattel has evolved considerably from its original common law application - concerning the asportation of another’s tangible property - to include even the unauthorized use of personal property: ‘Its chief importance now,’ according to Prosser, ‘is that there may be recovery . . . for interferences with the possession of chattels which are not sufficiently important to be classed as conversion, and so to compel the defendant to pay the full value of the thing with which he has interfered. Trespass to chattels survives today, in other words, largely as a little brother of conversion.’

Thrifty-Tel, Inc. v. Bezenek (1996) 46 Cal.App.4th1559, 1566-1567.

“Where the conduct complained of does not amount to a substantial interference with possession or the right thereto, but consists of intermeddling with or use of or damages to the personal property, the owner has a cause of action for trespasser case, and may recover only the actual damages suffered by reason of the impairment of the property or the loss of its use.” *Zaslow v. Kroenert* (1946) 29 Cal.2d 541, 551.

At bar, the complaint alleges “Defendant’s wrongful taking and retention of Beau constituted a trespass to Plaintiff’s personal property, causing harm to Plaintiff.” Complaint, 3:18-19. These allegations are insufficient. Again, there is the possibility Plaintiff can rectify these defects; thus, the Court will allow an opportunity to amend this claim.

Seventh Cause of Action – Injunctive Relief

“Injunctive relief is a remedy, not a cause of action.” *Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65. “Although [an] order sustaining [a] demurrer [is] proper because an injunction is not a cause of action, plaintiff[] may still obtain injunctive relief if they prevail on a cause of action.” *Id.* at 65-66. Therefore, the Court sustains the demurrer as to this separate cause of action without leave to amend.

Defendant Monte J. Smith D.D.S.' demurrer to Plaintiff's second amended complaint ("SAC") is sustained with leave to amend. Plaintiff shall serve and file an amended complaint within ten (10) days of notice of this Court's order.

Legal Standard on Demurrer

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Second Cause of Action: Breach of Contract

Defendant argues Plaintiff's second cause of action fails to state facts sufficient to constitute a cause of action because it fails to cure the deficiencies noted in the ruling sustaining Defendant's prior demurrer. The Court disagrees.

The elements of a breach of contract cause of action are the existence of the contract, performance by the plaintiff or excuse for nonperformance, breach by the defendant and resulting damages. *First Commercial Mortgage Co. v. Reece* (2001) 89 Cal.App.4th 731, 745. However, the scope of a patient's recovery for breach of contract against a doctor, or as here, a dentist, is more limited.

"[A] doctor may be held liable on a theory of breach of contract where he has clearly and unequivocally warranted that a course of treatment recommended by him will, inevitably, produce a certain result." *Pulvers v. Kaiser Foundation Health Plan, Inc.* (1979) 99 Cal.App.3d 560, 564-565; *accord McKinney v. Nash* (1981) 120 Cal.App.3d 428, 442 ("To recover for breach of warranty or contract in a medical malpractice case, there must be proof of an express contract by which the physician clearly promises a particular result and the patient consents to treatment in reliance on that promise"); *Depenbrok v. Kaiser Foundation Health Plan, Inc.* (1978) 79 Cal.App.3d 167, 171 (where "a surgeon has clearly promised a particular result (as